

HOUSE No. 2860

The Commonwealth of Massachusetts

PRESENTED BY:

James K. Hawkins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to maintenance of physical examinations records for public safety personnel.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>1/15/2025</i>

HOUSE No. 2860

By Representative Hawkins of Attleboro, a petition (accompanied by bill, House, No. 2860) of James K. Hawkins relative to maintenance of physical examinations records for public safety personnel. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to maintenance of physical examinations records for public safety personnel.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 94 of chapter 32 of the General Laws is hereby amended by
2 inserting at the end of the first paragraph the following:-

3 If the member's employer failed to maintain a record of the member's physical
4 examination on entry into service, the member or employer may submit an affidavit attesting that
5 the member did undergo such an examination and that the examination failed to reveal evidence
6 of such condition. This affidavit shall constitute satisfactory evidence that the member
7 underwent such a physical.

8 SECTION 2. Section 94A of said chapter 32 is hereby amended by inserting the
9 following sentence at the end of the section:-

10 If the member's employer failed to maintain a record of the member's physical
11 examination on entry into service, the member or employer may submit an affidavit attesting that
12 the member did undergo such an examination and that the examination failed to reveal evidence

13 of such condition. This affidavit shall constitute satisfactory evidence that the member
14 underwent such a physical.

15 SECTION 3. Section 94B of said chapter 32 is hereby amended by inserting the
16 following sentence at the end of the first paragraph:-

17 If the member's employer failed to maintain a record of the member's physical
18 examination on entry into service, the member or employer may submit an affidavit attesting that
19 the member did undergo such an examination and that the examination failed to reveal evidence
20 of such condition. This affidavit shall constitute satisfactory evidence that the member
21 underwent such a physical.